

Calendar Line 1**Case Name:** *Pedro Tostado Diaz, et al. v Luis Santiago et al.***Case No.** 17CV320200**BACKGROUND**

This neighbor-easement dispute has been pending since December 8, 2017. Plaintiffs Pedro Tostado Diaz and Maria Raquel Tostado hold a recorded ingress -and -egress easement over a shared driveway on Defendants Luis and Maria Santiago's property. The parties resolved the litigation by a Release and Settlement Agreement dated June 26, 2019. A Stipulation Re Settlement was filed on July 30, 2019, and the Court retained jurisdiction under Code of Civil Procedure section 664.6.

The Agreement governs use of the driveway easement. As relevant here, Section 1 limits each family to one parked vehicle in a designated marked space alongside the fence. Section 3 permits vehicle washing and maintenance on the driveway for up to four hours, provided the vehicle remains parked alongside the fence as described in Section 1. Section 4 prohibits any party, family member, friend, or guest from placing or storing personal property on the driveway. Section 5 prohibits temporary or permanent barricades or obstructions on the driveway. Section 9 requires a good-faith meet and confer before enforcement. Section 11 provides tiered liquidated damages of \$1,000 for a first violation, \$2,000 for a second, \$3,000 for a third, and \$4,000 for each fourth and subsequent violation, plus reasonable attorneys' fees and costs to the prevailing party.

The Court has enforced the Agreement three times:

1. July 2, 2020: Plaintiffs were awarded \$1,000 in sanctions for a first violation.
2. January 19, 2024: Plaintiffs were awarded \$2,000 in liquidated damages, plus \$3,638.42 in attorneys' fees and costs, for a second violation.
3. October 4, 2024: Plaintiffs were awarded \$3,000 in liquidated damages, plus \$4,638.00 in attorneys' fees and costs, for a third violation. The Court found the Agreement "clear and unambiguous" and cautioned that "the parties should clearly understand what the Agreement provides going forward."

Plaintiffs now bring their fourth motion to enforce, seeking liquidated damages for 18 to 22 alleged post-October 4, 2024 breaches, plus attorneys' fees and costs.

REQUEST FOR JUDICIAL NOTICE

Plaintiffs request judicial notice of the Declaration of Gregory C. Simonian in Support of Motion to Enforce Settlement Agreement filed on August 2, 2024, a document in this Court's file. Court records are subject to judicial notice, and a court must take judicial notice of a matter specified in Evidence Code section 452 when the requesting party gives sufficient notice and provides sufficient information. Cal Evid Code § 452, Cal Evid Code § 453. A party seeking judicial notice of material in the same court file must identify the specific material and comply with California Rules of Court, rule 3.1306(c). Cal. Rules of Court, rule 3.1306.

Plaintiffs provided the declaration as Exhibit A to their Request for Judicial Notice and identified the filing sought to be noticed. The request satisfies Evidence Code sections 452 and 453. Cal Evid Code § 452, Cal Evid Code § 453.

Plaintiffs' Request for Judicial Notice is GRANTED. The Court takes judicial notice of the existence and contents of the August 2, 2024 Simonian declaration as a filing in this case, but not for the truth of hearsay matters asserted therein, except to the extent the declaration reflects prior meet-and-confer correspondence independently corroborated in the record.

EVIDENTIARY ISSUES

Defendants' opposition includes no formal motion to strike and no separately stated evidentiary objections. Defendants argue that certain facts were improperly raised for the first time in reply. The Court addresses that issue in the merits discussion. To the extent Defendants raise credibility or interpretation issues through the Santiago Declaration, the Court weighs that evidence in the ordinary course.

LEGAL STANDARD

Code of Civil Procedure section 664.6 authorizes the Court, on motion, to enforce a written settlement agreement signed by the parties where the Court has retained jurisdiction. In ruling on such a motion, the Court may receive evidence, resolve disputed facts, and enter judgment under the settlement's terms. The Court may enforce the parties' agreed terms; it may not create material terms for them.

The Agreement satisfies section 664.6. It is in writing, signed by the parties, approved as to form by counsel, and includes an express stipulation for continuing jurisdiction.

MEET-AND-CONFER REQUIREMENT

Section 9 conditions liquidated damages under Section 11 on a good-faith meet and confer, defined as "either an in-person conversation or telephone conversation in which the Parties respectfully identify the issue in dispute and propose one or more resolutions." The Court has required strict compliance with this condition in prior orders.

Vehicle parking violations. The parking issue — Mr. Santiago parking vehicles outside the designated space and blocking the driveway — was extensively addressed before the third motion. Mr. Simonian's March 19, April 15, and June 3, 2024 letters addressed parking, vehicle maintenance outside the designated space, and driveway obstruction. Mr. Allen's June 21, 2024 letter responded to those issues. Defense counsel acknowledged in a July 9, 2024 telephone call that the parties had made "as much progress as possible through the meet and confer process." The October 2024 Order found those efforts sufficient.

After that order, Mr. Tostado avers that he attempted in-person meet-and-confer discussions with Mr. Santiago, who responded with profanity, dismissiveness, and physical gestures rather than substantive engagement. The current alleged parking violations involve the same conduct previously met and conferred upon and addressed by Court order. Under these circumstances,

and given Defendants' prior acknowledgment that further progress was unlikely, the meet-and-confer requirement is satisfied as to the vehicle -parking and driveway-blocking violations.

Bench-hanging violations. Plaintiffs also challenge Mr. Santiago's alleged practice of hanging work benches on the fence after washing his vehicle in January, February, and March 2026. Mr. Tostado states that he attempted to address the issue directly with Mr. Santiago and was ignored. Although the October 2024 Order did not specifically address bench-hanging, the Court finds the meet-and-confer showing adequate for this discrete issue because Mr. Tostado raised it in person and was rebuffed, and the broader issue of personal property on or near the driveway and fence has been repeatedly addressed.

MERITS: ALLEGED VIOLATIONS

A. Parking Outside Designated Space / Blocking the Driveway

The October 2024 Order was clear: Section 1 permits each family to park one vehicle in its designated marked space alongside the fence. Vehicle maintenance under Section 3 must occur with the vehicle parked in that designated space, not in front of the garage or elsewhere on the driveway.

Mr. Tostado declares, under penalty of perjury, that he photographed Mr. Santiago parking a second vehicle outside the designated space and blocking the driveway on February 11, April 8, April 17, April 30, May 8, May 12, May 15, June 16, June 19, July 3, July 12, July 18, August 20, August 29, September 17, and October 2, 2025. He further declares that Mr. Santiago parked his own truck outside the designated space on September 5 and November 1, 2025.

Defendants respond that the vehicles were present only for loading and unloading, and that a September 2019 text exchange permitted that practice. The argument is not persuasive. Mr. Tostado's text response stated: "Please follow the court mediation agreement. The use of the easement does not include loading or unloading." That language did not authorize parking outside the designated space. In any event, the October 2024 Order already rejected the same position. The issue is location, not duration or purpose. The submitted photographs depict vehicles blocking the driveway outside the designated space, not merely momentary active unloading with a driver present.

The Court finds that Defendants repeatedly violated Sections 1, 4, and 5 of the Agreement after the October 4, 2024 Order.

Plaintiffs identify 18 discrete incidents between February and November 2025 supported by date-stamped photographs. Defendants do not deny the photographs; they offer an interpretation the Court rejects. The Court finds 18 violations established:

1. Sixteen incidents involving a second vehicle blocking the driveway outside the designated space, in violation of Sections 1, 4, and 5.
2. Two incidents involving Mr. Santiago's own truck parked outside the designated space, in violation of Sections 1 and 5.

The Court therefore finds 18 provable violations after the October 4, 2024 Order.

B. Hanging Benches on the Fence

Section 5 prohibits temporary or permanent barricades or obstructions on the driveway and prohibits storage of items on or near the fence demarking the property line with Tract 8155. Plaintiffs contend Mr. Santiago washed his vehicle and hung large work benches on the fence on January 18, February 13–14, and March 1–36, 2026.

Mr. Santiago states the benches are vehicle-washing implements, are used only while washing is in progress, are hung within the confines of his parking space, and are returned to his garage afterward. He further states he stopped hanging them on the exterior fence after Mr. Tostado complained.

The Court finds this issue closer. Section 5's prohibition on items "stored on or near the fence demarking the property line with Tract 8155" was directed at storage, including items such as plywood. The prior orders did not decide whether temporarily hanging washing implements within the parking-space boundary during an active wash constitutes an obstruction. Given that ambiguity, the Court declines to find an additional breach on this issue.

No additional violation is found based on the bench- hanging allegations.

LIQUIDATED DAMAGES

Section 11 provides \$4,000 per breach for the fourth and each subsequent violation. The three prior enforcement orders supply the predicate violations. Each of the 18 violations found above is therefore a fourth-or-subsequent violation subject to \$4,000 in liquidated damages.

Total liquidated damages are \$72,000.

Defendants' penalty argument is rejected. The parties expressly agreed, through counsel, that the liquidated-damages amounts were reasonable compensation for each provable breach. On this section 664.6 motion, the Court enforces the parties' agreed terms and does not rewrite them.

ATTORNEYS' FEES AND COSTS

Section 11 entitles the prevailing party to reasonable attorneys' fees and costs. Plaintiffs are the prevailing party.

Plaintiffs request \$16,254.00 in fees, based on 25.2 hours at \$645 per hour, plus \$60 in filing costs. Mr. Simonian has practiced in California for approximately 40 years and holds an AV Martindale-Hubbell rating. His billing records are attached as Exhibit C to his declaration, with partial redactions for privileged communications.

Defendants request \$5,157.00 in fees, based on 11.46 hours at \$450 per hour, on the ground that they are the prevailing parties. Because Defendants do not prevail, their fee request is DENIED.

The Court finds Plaintiffs' requested hours reasonable in light of the motion's scope, the number of alleged violations, the photographic evidence, and the need to address the prior enforcement history. The \$645 hourly rate is reasonable for counsel of Mr. Simonian's experience in the San Jose/Silicon Valley market. The Court anticipates awarding an additional amount for hearing time if either party contests this ruling.

Plaintiffs are awarded \$16,254.00 in attorneys' fees and \$60.00 in costs.

DISPOSITION

The Court rules as follows:

1. Plaintiffs' Request for Judicial Notice is GRANTED.
2. Plaintiffs' Motion to Enforce Settlement Agreement is GRANTED IN PART.
3. The Court finds that Defendants Luis Santiago and Maria Santiago committed 18 provable violations of the Release and Settlement Agreement after the October 4, 2024 Order, each constituting a fourth-or-subsequent violation under Section 11.
4. Plaintiffs are awarded \$72,000 in liquidated damages against Defendants, jointly and severally.
5. Plaintiffs are awarded \$16,254.00 in attorneys' fees and \$60.00 in costs as the prevailing party.
6. Defendants shall pay Plaintiffs a total of \$88,314.00. To make payment realistic while preserving the full effect of this Order, payment may be made in monthly installments as follows:
 - a. Defendants shall pay Plaintiffs not less than \$1,000 per month, beginning on October 1, 2026, and continuing on the 1st day of each month thereafter until the total amount of \$88,314.00 is paid in full.
 - b. Each installment shall be delivered to Plaintiffs' counsel, or as otherwise agreed in writing by the parties, and shall be credited first to any outstanding costs and fees and then to liquidated damages, unless the parties agree otherwise in writing.
 - c. The installment schedule does not reduce, compromise, or waive any portion of the \$88,314.00 award. The full amount remains ordered, enforceable, and due until paid in full.
 - d. No acceptance of a partial or late payment shall constitute a waiver of Plaintiffs' right to enforce this Order, unless the waiver is in a written agreement signed by Plaintiffs or their counsel.
 - e. If Defendants fail to make any required monthly installment within 5 day grace period after its due date, Plaintiffs may seek enforcement of the unpaid balance, and the Court may, upon noticed application or other proper procedure, order the entire unpaid balance immediately due and enforceable, together with any additional recoverable fees and costs incurred in enforcing this payment provision.
 - f. Defendants may prepay all or any part of the outstanding balance at any time without penalty.
7. Defendants' request for attorneys' fees and costs is DENIED.
8. The parties are again admonished that the Agreement is clear and unambiguous. Any vehicle parked on the driveway must be parked within the designated marked space

alongside the fence. No vehicle may be parked in front of the garage, in the turnabout, or elsewhere on the driveway, regardless of duration or purpose. No personal property may be placed or stored on the driveway. Future violations remain subject to liquidated damages under Section 11, and the Court may consider additional remedies, including contempt, if warranted.

Plaintiff to prepare the final proposed order, accompanied by the necessary EFS-020 within 7 days of the hearing.

- oo0oo -

Calendar Line 2

Case Name: *Williams Herrera Arenas v. Ford Motor Co., et al.*

Case No.: 24-CV-453642

Motion for Summary Adjudication to the Complaint by Defendant Ford Motor Company

Factual and Procedural Background

This is an action for violations of the Song-Beverly Consumer Warranty Act and Fraud by plaintiff Williams Herrera Arenas (“Plaintiff”) against defendants Ford Motor Company (“Ford”) and Frontier Ford (collectively, “Defendants”).

According to the complaint, on July 7, 2020, Plaintiff entered into a warranty contract with defendant Ford regarding a 2019 Ford Mustang (“vehicle” or “subject vehicle”), which was manufactured and/or distributed by Ford. (Complaint at ¶ 10.) The warranty contract contained various warranties, including but not limited to the bumper-to-bumper warranty, powertrain warranty, emission warranty, etc. (Id. at ¶ 11, Ex. A.)

Defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to, transmission defects, engine defects, and electrical defects. (Complaint at ¶ 15.) For example, defendant Ford knew that vehicles equipped with the 10-speed transmission had one or more defects that can result in: (1) harsh and or hard shifting; and (2) jerking, shuddering, and/or juddering (“Transmission Defect”). (Id. at ¶¶ 26, 61.) These conditions present a safety hazard and are unreasonably dangerous to consumers because they can suddenly and unexpectedly affect the driver’s ability to control the vehicle’s speed, acceleration, deceleration, and/or overall responsiveness of the vehicle in various driving conditions. (Id. at ¶ 61.)

Under Song-Beverly, defendant Ford had an affirmative duty to promptly offer to repurchase or replace the vehicle at the time if it failed to conform to the terms of the express warranty after a reasonable number of repair attempts. (Complaint at ¶ 18.) Ford has failed to either promptly replace the vehicle or make restitution in accordance with Song-Beverly. (Id. at ¶ 19.)

Plaintiff also alleges defendant Ford committed fraud by allowing the vehicle to be sold without disclosing the Transmission Defect. (Complaint at ¶¶ 57-72.) Had Plaintiff known about the Transmission Defect, he would not have purchased the vehicle. (Id. at ¶¶ 63, 67.)

On December 10, 2024, Plaintiff filed the operative complaint against Defendants alleging causes of action for:

- (1) Violation of Subdivision (D) of Civil Code Section 1793.2;
- (2) Violation of Subdivision (B) of Civil Code Section 1793.2;
- (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2;
- (4) Breach of the Implied Warranty of Merchantability;
- (5) Fraudulent Inducement-Concealment; and
- (6) Negligent Repair.

On January 16, 2025, defendant Ford filed an answer generally denying allegations of the complaint and asserting affirmative defenses.

On June 9, 2026, defendant Ford filed the motion presently before the court, a motion for summary adjudication to the complaint. Plaintiff filed written opposition. Ford filed reply papers and evidentiary objections.

Trial is scheduled for October 5, 2026.

Motion for Summary Adjudication

Defendant Ford moves for summary adjudication of the fifth cause of action on the ground that Plaintiff lacks necessary evidence showing that: (1) the subject vehicle was manufactured with a Transmission Defect; and (2) Ford knew of the Transmission Defect and concealed the defect, inducing Plaintiff into purchasing the vehicle.

Ford's Evidentiary Objections

“In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court...” (Code Civ. Proc., § 437c, subd. (c).)

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

In reply, Ford filed objections to evidence submitted with the opposition papers. The court however declines to rule on the objections as they are not material to the outcome of the motion for reasons explained below.

Legal Standard

Any party may move for summary judgment. (Code Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) “The object of the summary judgment procedure is ‘to cut through the parties’ pleadings’ to determine whether trial is necessary to resolve their dispute. [Citation.]” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1020 (*Spinks*).)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact...” (*Aguilar, supra*, 25 Cal.4th at p. 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

If a moving defendant makes the necessary initial showing, the burden of production shifts to the plaintiff to make a prima facie showing of the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); see *Aguilar, supra*, 25 Cal.4th at p. 850.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom.” (*Aguilar, supra*, 25 Cal.4th at p. 856.) The moving party’s evidence is strictly construed, while the opponent’s is liberally construed. (*Id.* at p. 843.)

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation.] ‘A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.’ [Citation.]” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630.)

“[S]ummary judgment (or summary adjudication) is a drastic remedy and should be used with caution. [Citation.] Because summary judgment is a drastic procedure all doubts as to the propriety of granting a motion for summary judgment should be resolved in favor of the party opposing the motion. [Citations.]” (*Tully v. World Savings & Loan Assn.* (1997) 56 Cal.App.4th 654, 660; see *Kernan v. Regents of University of California* (2022) 83 Cal.App.5th 675, 684 [“The drastic remedy of summary judgment may not be granted unless reasonable minds can draw only one conclusion from the evidence.”].)

Ford’s Evidence

The motion for summary adjudication is directed to the fifth cause of action for fraudulent inducement – concealment.

“[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.)

“Defendants moving for summary judgment (or summary adjudication) may satisfy their initial burden either by producing evidence of a complete defense or by showing the plaintiff’s inability to establish a required element of the case. [Citations.]” (*Spinks, supra*, 171 Cal.App.4th at p. 1021.)

Defendant Ford argues Plaintiff cannot prove the necessary elements for fraudulent inducement – concealment. Specifically, that Plaintiff lacks evidence showing that: (1) the subject vehicle was manufactured with a Transmission Defect; and (2) Ford knew of the Transmission Defect and concealed the defect, inducing Plaintiff into purchasing the vehicle. In support, Ford relies primarily on Plaintiff’s factually devoid discovery responses.

A moving party on a motion for summary judgment (or summary adjudication) may rely on factually devoid discovery responses to shift the burden of proof. (*Lopez v. Super. Ct.* (1996)

45 Cal.App.4th 705, 713.) Once the burden shifts as a result of the factually devoid discovery responses, the opposing party must set forth specific facts which prove the existence of a triable issue of material fact. (*Ibid.*)

For example, in *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573 (*Union Bank*), cited in the moving papers, the defendant supported its motion for summary judgment with the plaintiff's answers to requests for admissions and interrogatories. (*Union Bank, supra*, at pp. 577-578.) The defendant's interrogatories asked plaintiff to state all facts and to identify all witnesses and documents which supported the plaintiff's cause of action for fraud. (*Id.* at p. 578.) The plaintiff replied only that he "believe[d]" the defendant "knowingly and fraudulently" committed certain allegedly deceitful acts. (*Ibid.*)

The Court of Appeal concluded these "factually devoid" discovery responses were enough to meet the defendant's obligation under section 437c, subdivision (o)(2), to show that one or more elements of the cause of action cannot be established. (*Union Bank, supra*, 31 Cal.App.4th at pp. 592-593.) Consequently, the burden shifted to plaintiff to proffer admissible evidence which disclosed the existence of a triable factual issue about whether the defendant committed the alleged fraud. (*Id.* at p. 593.)

Here, defendant Ford submits Plaintiff's responses to special interrogatories nos. 13-15 which require Plaintiff to state all facts and identify all persons and documents that support the fifth cause of action. (See Ford's Sep. Stmt. of Undisputed Facts at Nos. 9-11.) The court finds these responses to be factually devoid as Plaintiff fails to provide evidence demonstrating the subject vehicle was manufactured with a Transmission Defect and that Ford knew of the Transmission Defect and concealed the defect from him. Ford also submits evidence of Plaintiff's document production, consisting of 34 total pages including: (1) the Retail Installment Sales Contract and related sales documents; (2) loan payment information; (3) some repair orders for the subject vehicle; (4) Plaintiff's insurance identification card; and (5) the subject vehicle's registration card. (*Id.* at Fact No. 12; Hollenbeck Decl. at Ex. D.) None of these documents prove the necessary elements to support a claim for fraudulent inducement – concealment.

Thus, as defendant Ford has met its initial burden, the burden shifts to Plaintiff to raise a triable issue of material fact.

Plaintiff's Evidence

A triable issue of material fact exists "if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar, supra*, 25 Cal.4th at p. 850, fn. omitted.) If the plaintiff opposing summary judgment presents evidence demonstrating the existence of a disputed material fact, the motion must be denied. (*Id.* at p. 856.)

In opposition, Plaintiff argues defendant Ford had prior knowledge of the Transmission Defect in the form of four Technical Service Bulletins ("TSB"). (See Plaintiff's Additional Facts at Nos. 5-8.) Plaintiff however fails to submit TSB 24-2101 with his opposition papers. And though Ford submits a copy of TSB 24-2101 with its reply papers, the document does not assist Plaintiff as it was issued on March 28, 2024, almost four years *after* Plaintiff purchased his

vehicle. As to the remaining TSB, as pointed out in reply, these do not relate to Plaintiff's vehicle and thus fail to address whether Ford had knowledge of the Transmission Defect. Plaintiff also provides his own declaration in support of his opposition. But, Plaintiff's declaration does not substantively address whether the subject vehicle was manufactured with a Transmission Defect and if Ford knew of the Transmission Defect and concealed the defect from him. Furthermore, Plaintiff's remaining arguments regarding duty to disclose, reliance, and materiality are simply irrelevant to the instant motion for summary adjudication. The court therefore finds that Plaintiff fails to raise a triable issue of material fact to defeat the motion for summary adjudication.

Plaintiff's Request to Conduct Further Discovery

In the alternative, Plaintiff requests a continuance of the summary adjudication hearing to complete discovery of Ford's pre-purchase knowledge in accordance with Code of Civil Procedure section 437c, subdivision (h) which states:

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due.” (Code Civ. Proc., § 437c, subd. (h).)

“When a party makes a good faith showing by affidavit demonstrating that a continuance is necessary to obtain essential facts to oppose a motion for summary judgment, the trial court must grant the continuance request. [Citation.] ‘Continuance of a summary judgment hearing is not mandatory, however, when no affidavit is submitted or when the submitted affidavit fails to make the necessary showing under [Code of Civil Procedure] section 437c, subdivision (h). [Citations.]’ ” (*Park v. First American Title Co.* (2011) 201 Cal.App.4th 1418, 1428.)

“An opposing party's declaration in support of a motion to continue the summary judgment hearing should show the following: (1) ‘*Facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion*’; (2) ‘*The specific reasons why such evidence cannot be presented at the present time*’; (3) ‘*An estimate of the time necessary to obtain such evidence*’; and (4) ‘*The specific steps or procedures the opposing party intends to utilize to obtain such evidence.*’ [Citation.]” (*Johnson v. Alameda County Medical Center* (2012) 205 Cal.App.4th 521, 532 (*Johnson*).)

“ ‘Code of Civil Procedure section 437c, subdivision (h) requires more than a simple recital that “facts essential to justify opposition may exist.” ’ [Citation.] ‘The statute cannot be employed as a device to get an automatic continuance by every unprepared party who simply files a declaration stating that unspecified essential facts may exist. The party seeking the continuance must justify the need, by detailing both the particular essential facts that may exist and the specific reasons why they cannot then be presented.’ [Citation.]” (*Johnson, supra*, 205 Cal.App.4th at p. 532.)

“Where a plaintiff cannot make the showing required under section 437c, subdivision (h), a plaintiff may seek a continuance under the ordinary discretionary standard applied to requests for a continuance. [Citation.] This requires a showing of good cause. [Citation.] ‘[I]n deciding whether to continue a summary judgment to permit additional discovery courts consider various factors, including (1) how long the case has been pending; (2) how long the requesting party had to oppose the motion; (3) whether the continuance motion could have been made earlier; (4) the proximity of the trial date or the 30-day discovery cutoff before trial; (5) any prior continuances for the same reason; and (6) the question whether the evidence sought is truly essential to the motion.’ [Citation.]” (*Hamilton v. Orange County Sheriff’s Dept.* (2017) 8 Cal.App.5th 759, 765.)

Here, Plaintiff seeks further discovery of Ford’s own internal engineering, pre-production testing, and warranty claims records concerning when Ford first identified the Transmission Defect. (See OPP at p. 12:11-21.) But, even though the opposition includes a declaration from Plaintiff’s counsel, the declaration does not address the necessary factors for a mandatory continuance under section 437c, subdivision (h). Nor does Plaintiff qualify for a continuance under the discretionary standard as he fails to demonstrate good cause in connection with any of the factors set forth above. The court thus concludes that Plaintiff is not entitled to a continuance of the motion for summary adjudication to conduct further discovery.

Consequently, the motion for summary adjudication to the fifth cause of action is GRANTED.

Disposition

The motion for summary adjudication to the fifth cause of action against defendant Ford is GRANTED.

Plaintiff’s request to continue the hearing on the motion for summary adjudication to conduct further discovery is DENIED.

The court will prepare the Order.

- 00000 -

Calendar line 4**Case Name:** *Zhao et al. v. Guo et al.***Case No.:** 25CV465349**DEFENDANTS' MOTION TO STAY AND PETITION TO COMPEL ARBITRATION**

This matter arises from a medical malpractice action brought by Plaintiffs Yiting Zhao (“Ms. Zhao”) and Tian Tian (“Mr. Tian”) (collectively “Plaintiffs”) against Defendants Chuntian Acupuncture Clinic, Inc. (“CAC”) and Yueyue Guo, L.A.c. (“Dr. Guo”) (collectively “Defendants”). Plaintiffs allege that Defendants negligently rendered acupuncture and related therapeutic treatment to Ms. Zhao in May 2024 in connection with the treatment of her preexisting knee injuries. (Complaint at p. 4.) Plaintiffs allege Defendants utilized a smoke-free moxibustion appliance that allegedly caused Ms. Zhao third-degree burns on her knees. (Ibid.) Ms. Zhao alleges that, as a result, she sustained significant injuries requiring multiple debridement procedures domestically and abroad, as well as ongoing physical pain, emotional distress, and limitations in her mobility and daily functioning. (Ibid.) Mr. Tian alleges loss of consortium as a result of his wife's injuries. (Ibid.)

Defendants petition the Court to compel arbitration of Plaintiffs' claims pursuant to an Arbitration Agreement (“Agreement”) executed by Ms. Zhao as a condition of treatment. Plaintiffs do not dispute the existence or scope of the arbitration agreement. Instead, Plaintiffs contend that the fee-sharing provision is unconscionable because it requires them to bear arbitration costs that they cannot afford.

Plaintiffs have submitted declarations and supporting documentation concerning their financial condition and ability to pay their anticipated share of the arbitration costs. Defendants have had an opportunity to respond.

Having reviewed the parties' submissions, the Agreement, and the applicable law, the Court finds that additional limited evidence concerning Plaintiffs' present financial ability to pay is appropriate before the Court determines whether Plaintiffs are unable to pay their anticipated share of the reasonable costs of arbitration. The hearing is therefore continued for that limited purpose.

OBJECTIONS TO EVIDENCE

Defendants' objection to the Declaration of Yiting Zhao is DISREGARDED. The Court does not rely on the challenged portion of the declaration in this ruling.

Defendants' objection to the Declaration of Tian Tian is DISREGARDED. The Court does not rely on the challenged portion of the declaration in this ruling.

Defendants' Objections Nos. 1 and 2 to the Declaration of Daniel J. Libbey are SUSTAINED. Plaintiffs rely on the American Arbitration Association (“AAA”) and Judicial Arbitration and Mediation Services (“JAMS”) rules in estimating arbitration costs. The Agreement, however, specifically provides that the ADR Services, Inc. rules shall govern.